

25STLC06553 25STLC06553

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-03

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Case Number: 25STLC06553 Hearing Date: August 3, 2026 Dept: 25

HEARING

DATE: Mon., August 3, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Lee

v. ABI Construction Inc., et al. COMPL.

FILED: 08-27-25

CASE NUMBER: 25STLC06553

NOTICE:

OK

PROCEEDINGS: MOTION FOR LEAVE TO AMEND THE COMPLAINT AND RECLASSIFY THE ACTION FROM LIMITED TO UNLIMITED JURISDICTION

MOVING PARTY: Plaintiff Insang Lee

RESP. PARTY: None

MOTION FOR RECLASSIFICATION

(CCP § 403.040)

TENTATIVE RULING:

The Court DENIES Insang Lee's motion for leave to amend and for reclassification as an unlimited jurisdiction case.

Lee is to give
notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC,
rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a)
OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) OK

OPPOSITION: None
filed as of July 29, 2026 [] Late [X]
None

REPLY: None
filed as of July 29, 2026 [] Late [X]
None

ANALYSIS:

Insang

Lee brought a limited civil action against ABI Construction Inc., Dustin Charles Hughes, Evan Duong, and Hoan Duong over a motor vehicle collision. Hoan and Evan answered and filed cross-complaints, and ABI Construction Inc. also answered. Lee now moves to reclassify this case to the Court's unlimited jurisdiction pursuant to Code of Civil Procedure section 403.040, subdivision (b).[1]

To

reclassify an action at this point, a plaintiff must show (1) that the case is incorrectly classified and (2) that they had good cause for not seeking reclassification earlier. (Code Civ.

Proc., § 403.040, subd. (b).) To

show that a case is incorrectly classified, the plaintiff "must present evidence to demonstrate a possibility the damages will exceed \$[35],000." (Ytuarte v. Superior Court (2005) 129 Cal.App.4th 266, 279, emphasis altered.)

Lee

presents no evidence to support reclassification. Lee's counsel argues in the motion that Lee "sustained over \$43,000 in medical expenses" as a result of the collision. Counsel also contends that before the complaint was filed, he was "unsure whether Defendant Hughes was in the course and scope of his employment with Defendant ABI Construction, Inc.," but counsel filed the complaint to preserve the statute of limitations. And after discovery was conducted, Lee's counsel argues that Evan Duong supposedly produced a text message from Hughes that he was using his vehicle as part of his employment, indicating the availability of liability insurance. While these facts may justify reclassification, a lawyer's unsworn statements are not evidence. (In re Marriage of Pasco (2019) 42 Cal.App.5th 585, 592.) The motion is not accompanied by anything that is evidence.

The

Court DENIES Lee's motion.

Lee

is to give notice.

[1] Lee's

motion also requests leave to amend, but no argument is made regarding amendment. The Court thus rules on this motion as one for reclassification.